

4. FEINBERG v. TRELLA TAHOE, INC., ET AL., 25CV0309**Motion for Leave to File Cross-Complaint**

On April 21, 2026, pursuant to Code of Civil Procedure section 428.50, defendant Albertsons Companies, Inc. (“Albertsons”) filed an amended motion for leave to file its proposed cross-complaint against defendant Trella Tahoe, Inc. (“Trella”).

On June 4, 2026, Trella filed a timely opposition. On June 17, 2026, plaintiff James Feinberg (“plaintiff”) filed a notice of non-opposition. Also on June 17, 2026, Albertsons filed a timely reply.

1. Background

On February 5, 2025, plaintiff filed this personal injury action against Trella, Albertsons, and Nils Sten Ospenson II.

In a letter dated April 2, 2025, Albertsons requested Trella to tender its defense and indemnify Albertsons in this action. (Norris Decl., Ex. F.) Albertsons’s letter is three pages long, cites portions of the parties’ contract verbatim, and provides legal argument in support of Albertsons’s requests. On May 2, 2025, Northfield Insurance Company (Trella’s insurance company) denied Albertsons’s requests. (Norris Decl., Ex. G.)

On May 16, 2025, Albertsons filed its answer to plaintiff’s complaint.

On October 8, 2025, the court set a jury trial for November 2, 2026.

On February 11, 2026, Albertsons sent Trella a renewed request for tender and indemnification that included additional legal argument in response to Northfield’s denial letter of May 2, 2025. (Norris Decl., Ex. H.) In the last paragraph of the letter, Albertsons stated, **“Please reply in writing by [sic] with your client’s response. If I have not heard from you by close of business on February 18, 2026, I intend to seek leave of court to file a cross-complaint against Trella Tahoe for express indemnity and breach of contract.”** (Norris Decl., Ex. H (original emphasis).)

Albertsons's proposed cross-complaint against Trella asserts causes of action for indemnification, contribution, and breach of contract. (Norris Decl., Ex. I.)

2. Legal Principles

Code of Civil Procedure section 428.50 provides that a cross-complaint must be filed before or at the same time as the answer to the complaint or at any time before the trial date is set. (Code Civ. Proc., § 428.50, subds. (a), (b).) Code of Civil Procedure section 428.50, subdivision (c) requires that “[a] party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.” (Code Civ. Proc., § 428.50, subd. (c).)

Permission to file a permissive cross-complaint is solely within the trial court’s discretion.⁸ (*Orient Handel v. United States Fid. and Guar. Co.* (1987) 192 Cal.App.3d 684, 701.) A cross-complaint filed against another defendant is permissive, not compulsory. (*American Bankers Ins. Co. v. Avco-Lycoming Division* (1979) 97 Cal.App.3d 732, 735.)

3. Discussion

Trella argues that Albertsons has not acted in good faith where its actions demonstrate delay, tactical leverage, and lack of diligence. The court disagrees. The evidence shows that, as early as April 2025 — less than two months after plaintiff’s filing of the complaint, and before Albertsons filed its answer to complaint — Albertsons made a good-faith effort to tender its defense and seek contribution from Trella.

In February 2026, Albertsons sent Trella a renewed request, which addressed the reasons for denial that Northfield gave in its May 2, 2025, denial letter. The court finds

⁸ By contrast, if the proposed cross-complaint is compulsory, the trial court must grant leave so long as the party filing the motion is acting in good faith. (Code Civ. Proc., § 426.50; see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–99.)

that allowing Albertsons to file its proposed cross-complaint against Trella is in the interest of justice and so exercises its discretion to grant Albertsons's motion.

TENTATIVE RULING # 4: THE MOTION IS GRANTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.